



February 6, 2026

ENGROSSED HOUSE BILL No. 1278

DIGEST OF HB 1278 (Updated February 4, 2026 12:33 pm - DI 104)

Citations Affected: IC 21-41; IC 25-23.

Synopsis: Nursing matters; education programs. Requires a state educational institution that offers a two year graduate degree program in mental or behavioral health to evaluate the graduate degree program to determine the feasibility of providing the program in a specifically structured manner to allow full-time students to complete the program within: (1) one year; or (2) five years if the program is combined with a baccalaureate degree program. Requires certain state educational institutions to offer at least one graduate degree program in one or more certain disciplines that is structured to allow full-time students to
(Continued next page)

Effective: July 1, 2026.

Barrett, Ledbetter, Isa, Shackelford

(SENATE SPONSORS — BUSCH, CHARBONNEAU, JACKSON L)

January 6, 2026, read first time and referred to Committee on Public Health.
January 20, 2026, amended, reported — Do Pass.
January 22, 2026, read second time, ordered engrossed.
January 23, 2026, engrossed.
January 28, 2026, read third time, passed. Yeas 94, nays 0.

SENATE ACTION

February 2, 2026, read first time and referred to Committee on Health and Provider Services.
February 5, 2026, amended, reported favorably — Do Pass.

EH 1278—LS 6838/DI 147



complete the program within: (1) one year; or (2) five years if the program is combined with a baccalaureate degree program. Requires certain state educational institutions to report to the commission for higher education (commission) regarding the graduate degree programs. Requires the commission to post the submitted reports on the commission's website. Requires the Indiana State Nurses Association, any time there is a vacancy or expiration of a term on the board of nursing, to recommend to the governor a list of qualified nurses for appointment. (Current law requires the Indiana State Nurses Association to recommend the list when there is a vacancy on the board.) Allows an institution that has been operating an eligible nursing program for at least five years to increase the enrollment in any eligible nursing program at any rate the institution considers appropriate.



February 6, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED HOUSE BILL No. 1278

A BILL FOR AN ACT to amend the Indiana Code concerning professions and occupations.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 21-41-18 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:

4 **Chapter 18. Graduate Programs in Mental or Behavioral**
5 **Health**

6 **Sec. 1. This chapter does not apply to Ivy Tech Community**
7 **College or Vincennes University.**

8 **Sec. 2. Each state educational institution that offers a two (2)**
9 **year graduate degree program in mental or behavioral health shall**
10 **evaluate the graduate degree program to determine the feasibility,**
11 **if any, of providing the graduate degree program in a specifically**
12 **structured manner to allow a full-time student to complete the**
13 **graduate degree within:**

14 **(1) one (1) year; or**

15 **(2) five (5) years if the graduate degree program is combined**
16 **with a baccalaureate degree program.**

17 **Sec. 3. Not later than July 1, 2028, each state educational**

EH 1278—LS 6838/DI 147



institution shall offer at least one (1) graduate degree program in one (1) or more of the following disciplines that is specifically structured to allow a full-time student to complete the graduate degree as described in section 2(1) or 2(2) of this chapter:

- (1) Social work.
- (2) Clinical addiction counseling.
- (3) Mental health counseling.
- (4) Marriage and family therapy.
- (5) School counseling.
- (6) Counseling.
- (7) Psychology.

Sec. 4. (a) Not later than November 1, 2028, each state educational institution shall report to the commission for higher education, in a form prescribed by the commission for higher education, information regarding each graduate degree program that the state educational institution is offering in compliance with section 3 of this chapter.

(b) Not later than November 1, 2032, each state educational institution shall report to the commission for higher education, in a form prescribed by the commission for higher education, the following information for each graduate degree program described in section 3 of this chapter offered by the state educational institution:

- (1) For each of the immediately preceding four (4) academic years, a description of each graduate degree program.
- (2) The estimated student cost savings of the graduate degree program.
- (3) For a graduate degree program that allows completion within one (1) year, the number of students:
 - (A) enrolled in the graduate degree program; and
 - (B) who completed the graduate degree program on time;
 for each of the immediately preceding four (4) academic years.
- (4) For a graduate degree program combined with a baccalaureate degree program that allows for completion within five (5) years, the number of students:
 - (A) enrolled in the graduate degree program; and
 - (B) who completed or are on track to complete the graduate degree program on time;
 for each of the immediately preceding four (4) academic years.
- (5) Any other information requested by the commission for



higher education.

(c) The commission for higher education shall post the reports submitted under this section on the commission for higher education's website.

Sec. 5. The commission for higher education may consider graduate degrees described in section 3 of this chapter completed within the time frame described in section 2 of this chapter for the purposes of the higher educational operating funding outcomes based formula created by the commission for higher education under IC 21-18-16-2.

Sec. 6. This chapter expires July 1, 2033.

SECTION 2. IC 25-23-1-3, AS AMENDED BY P.L.148-2023, SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. At any time there is a vacancy **or expiration of a term**, the Indiana State Nurses Association shall recommend to the governor a list of qualified nurses for appointment to the board in the number of not less than twice the number of:

(1) nurse vacancies to be filled; **or**

(2) **nurse appointments to be made.**

SECTION 3. IC 25-23-1-20.1, AS AMENDED BY P.L.148-2023, SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 20.1. (a) As used in this section, "eligible ~~associate or bachelor's degree registered~~ nursing program" means **an a practical nursing program or an** associate or bachelor's degree registered nursing program that:

(1) is accredited by the board; and

(2) has an annual rate of successful completion of the National Council Licensure Examination (NCLEX) score of at least eighty percent (80%).

(b) As used in this section, "nursing program" means any of the following:

(1) A licensed practical nursing program.

(2) An associate degree nursing program.

(3) A diploma nursing program.

(4) A baccalaureate degree nursing program.

(c) ~~An eligible associate degree or bachelor's degree registered nursing program that has been operating for at least five (5) years may increase enrollment in the program at any rate the program considers appropriate.~~ **An institution that has been operating an eligible nursing program for at least five (5) years may increase the enrollment in any eligible nursing program at any rate the institution considers appropriate.**



- 1 (d) A nursing program that:
- 2 (1) is operated by a postsecondary educational institution, as
- 3 defined in IC 21-7-13-6(a)(1);
- 4 (2) was accredited by the board on a date after June 30, 2020; and
- 5 (3) has been operating for at least one (1) year;
- 6 may increase its enrollment rate by not more than one hundred percent
- 7 (100%).



COMMITTEE REPORT

Mr. Speaker: Your Committee on Public Health, to which was referred House Bill 1278, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 1, between the enacting clause and line 1, begin a new paragraph and insert:

"SECTION 1. IC 25-23-1-3, AS AMENDED BY P.L.148-2023, SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. At any time there is a vacancy **or expiration of a term**, the Indiana State Nurses Association shall recommend to the governor a list of qualified nurses for appointment to the board in the number of not less than twice the number of:

(1) nurse vacancies to be filled; **or**

(2) **nurse appointments to be made.**".

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1278 as introduced.)

BARRETT

Committee Vote: yeas 13, nays 0.

COMMITTEE REPORT

Mr. President: The Senate Committee on Health and Provider Services, to which was referred House Bill No. 1278, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 1, between the enacting clause and line 1, begin a new paragraph and insert:

"SECTION 1. IC 21-41-18 IS ADDED TO THE INDIANA CODE AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 18. Graduate Programs in Mental or Behavioral Health

Sec. 1. This chapter does not apply to Ivy Tech Community College or Vincennes University.

EH 1278—LS 6838/DI 147



Sec. 2. Each state educational institution that offers a two (2) year graduate degree program in mental or behavioral health shall evaluate the graduate degree program to determine the feasibility, if any, of providing the graduate degree program in a specifically structured manner to allow a full-time student to complete the graduate degree within:

- (1) one (1) year; or
- (2) five (5) years if the graduate degree program is combined with a baccalaureate degree program.

Sec. 3. Not later than July 1, 2028, each state educational institution shall offer at least one (1) graduate degree program in one (1) or more of the following disciplines that is specifically structured to allow a full-time student to complete the graduate degree as described in section 2(1) or 2(2) of this chapter:

- (1) Social work.
- (2) Clinical addiction counseling.
- (3) Mental health counseling.
- (4) Marriage and family therapy.
- (5) School counseling.
- (6) Counseling.
- (7) Psychology.

Sec. 4. (a) Not later than November 1, 2028, each state educational institution shall report to the commission for higher education, in a form prescribed by the commission for higher education, information regarding each graduate degree program that the state educational institution is offering in compliance with section 3 of this chapter.

(b) Not later than November 1, 2032, each state educational institution shall report to the commission for higher education, in a form prescribed by the commission for higher education, the following information for each graduate degree program described in section 3 of this chapter offered by the state educational institution:

- (1) For each of the immediately preceding four (4) academic years, a description of each graduate degree program.
- (2) The estimated student cost savings of the graduate degree program.
- (3) For a graduate degree program that allows completion within one (1) year, the number of students:
 - (A) enrolled in the graduate degree program; and
 - (B) who completed the graduate degree program on time;
 for each of the immediately preceding four (4) academic



years.

(4) For a graduate degree program combined with a baccalaureate degree program that allows for completion within five (5) years, the number of students:

(A) enrolled in the graduate degree program; and

(B) who completed or are on track to complete the graduate degree program on time;

for each of the immediately preceding four (4) academic years.

(5) Any other information requested by the commission for higher education.

(c) The commission for higher education shall post the reports submitted under this section on the commission for higher education's website.

Sec. 5. The commission for higher education may consider graduate degrees described in section 3 of this chapter completed within the time frame described in section 2 of this chapter for the purposes of the higher educational operating funding outcomes based formula created by the commission for higher education under IC 21-18-16-2.

Sec. 6. This chapter expires July 1, 2033."

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1278 as printed January 20, 2026.)

CHARBONNEAU, Chairperson

Committee Vote: Yeas 10, Nays 2.

